

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X

KEVIN SMITH,

AMENDED
COMPLAINT

Plaintiff

- against -

Index No.: 700859/2014

RACHEL GOSINE,
THE CITY OF NEW YORK;
PABLO DeJESUS (individually);
ANDREW FITZGERALD (individually); and
MORGAN SPRAGUE (individually),

Defendants.

-----X

Plaintiff complaining of the defendants by his attorneys, MICHAEL J. ANDREWS, P.C.,
hereby alleges upon information and belief as follows:

THE PARTIES

1. The plaintiff KEVIN SMITH (sometimes referred to herein as "the Plaintiff") is an adult with a residence in the State of New York, County of Queens.

2. Kevin Smith is the Chief Executive Officer and owner of G.E.T. Ltd. a/k/a Granite Enforcement Team (herein referred to as "G.E.T."). G.E.T. is a business which provides security for government buildings, Supreme Courts, Magistrate Courts, and other government buildings across the Island of Bermuda.

3. The defendant RACHEL GOSINE ("GOSINE") is an adult resident of the State of New York.

4. The defendant CITY OF NEW YORK was and still is a municipal corporation duly organized under the laws of the State of New York.

5. The defendant police officer PABLO DeJESUS ("DeJESUS") is an adult.

6. At all relevant times hereinafter mentioned, the defendant DeJESUS was and is an employee of the defendant CITY OF NEW YORK.

7. At all relevant times hereinafter mentioned, the defendant DeJESUS was a law enforcement officer employed by the defendant CITY OF NEW YORK within the New York City Police Department.

8. At all relevant times, defendant DeJESUS was a police officer employed by the City of New York and was assigned to, or worked out of, the 102nd police precinct.

9. That at all times hereinafter mentioned, defendant DeJESUS was acting within the scope of his employment and in the furtherance of his duties with defendant CITY OF NEW YORK.

10. Defendant DeJESUS is sued only in his individual capacity.

11. At all times hereinafter mentioned, defendant DeJESUS was acting under color of law, to wit: the laws of the State of New York and City of New York.

12. The defendant police officer ANDREW FITZGERALD ("FITZGERALD") is an adult.

13. At all relevant times hereinafter mentioned, the defendant FITZGERALD was and is an employee of the defendant CITY OF NEW YORK.

14. At all relevant times hereinafter mentioned, the defendant FITZGERALD was a law enforcement officer employed by the defendant CITY OF NEW YORK within the New York City Police Department.

15. At all relevant times, defendant FITZGERALD was a police officer employed by the City of New York and was assigned to, or worked out of, the 105th police precinct.

16. That at all times hereinafter mentioned, defendant FITZGERALD was acting within the scope of his employment and in the furtherance of his duties with defendant CITY OF NEW YORK.

17. Defendant FITZGERALD is sued only in his individual capacity.

18. At all times hereinafter mentioned, defendant FITZGERALD was acting under color of law, to wit: the laws of the State of New York and City of New York.

19. The defendant police officer MORTON SPRAGUE ("SPRAGUE") is an adult.

20. At all relevant times hereinafter mentioned, defendant SPRAGUE was and is an employee of the defendant CITY OF NEW YORK.

21. At all relevant times hereinafter mentioned, the defendant SPRAGUE was a law enforcement officer employed by the defendant CITY OF NEW YORK within the New York City Police Department.

22. At all relevant times, defendant SPRAGUE was a police officer employed by the City of New York and was assigned to, or worked out of, the 105th police precinct.

23. That at all times hereinafter mentioned, defendant SPRAGUE was acting within the scope of his employment and in the furtherance of his duties with defendant CITY OF NEW YORK.

24. Defendant SPRAGUE is sued only in his individual capacity.

25. At all times hereinafter mentioned, defendant SPRAGUE was acting under color of law, to wit: the laws of the State of New York and City of New York.

BACKGROUND FACTS

26. Plaintiff and Gosine are not married to another, however, they are the parents of three minor children.

27. On or about December 22, 2009, the Plaintiff purchased a residential home in the Rosedale section of Queens County for the purpose of providing a home in which his children could reside with their mother, defendant Gosine.

28. Although the deed to that residential property is in the name of defendant GOSINE, since approximately December 2009, the Plaintiff has transferred funds to GOSINE to enable GOSINE to pay the monthly mortgage payment on the home; the Plaintiff has also voluntarily transferred other funds to GOSINE for the purpose of providing financial support for the three minor children.

29. The Plaintiff, as the owner of a security company, for the protection of the three minor children and their mother, had a closed circuit television ("CCVT") monitoring system installed at the residential home. The operational control for that CCTV system was located within the home. The CCTV system monitored the activity in the areas surrounding the home. The CCTV system contained a hard drive which recorded the events and the CCTV system could play back the video depictions of the events which had occurred at any point in time during the prior three months period.

30. On or about February 20, 2013, defendant GOSINE commenced a proceeding in the Family Court of the State of New York, County of Queens (hereinafter the "Family Court") against Plaintiff. As a part of the initiation of the Family Court proceeding, on February 20, 2013 defendant GOSINE signed and then filed a sworn affidavit with the Family Court.

31. In that Wednesday, February 20, 2013 sworn affidavit, defendant Gosine stated, in part, "On 2/18/13 at 855 pm Kevin Smith came to my house and went through the DVR of the house and saw that I had a friend over" Defendant Gosine knew that sworn statement was false. In fact, defendant Gosine was aware that on Monday, February 18, 2013, Plaintiff was not located anywhere within the United States of America, more particularly, she knew that the Plaintiff was not in her home

on February 18, 2013. Defendant Gosine also falsely stated in that affidavit that the Plaintiff had threatened to "burn the house down with me and the kids in it."

32. Less than one month later, in response to a Petition filed by the Plaintiff in Family Court, by order dated Tuesday, March 19, 2013, and issued on the consent of defendant GOSINE, Family Court ordered, among other matters, that the Plaintiff was permitted to take the three minor children to Disney World in Florida during Sunday, March 24, 2013 to Sunday, March 31, 2013.

33. In further response to the Petition filed by the Plaintiff in Family Court, by order dated Wednesday, April 3, 2013, Family Court granted the Plaintiff temporary physical custody of the three minor children. In that same April 3, 2013 order, Family Court ordered that the mother, defendant GOSINE, shall have supervised visits through Making It Work. In addition, the mother, defendant GOSINE, was permitted to call the three minor children on April 4, 2013 and thereafter three times a week, Mondays, Wednesdays, and Saturdays, 6 - 7 p.m.

34. In further response to the Petition filed by the Plaintiff in Family Court, by order dated Tuesday, April 30, 2013, Family Court continued to grant the Plaintiff temporary physical custody of the three minor children. Family Court ordered that the mother, defendant GOSINE, shall continue to have supervised visits through Making It Work. In addition, the mother, defendant GOSINE, was still permitted to have phone calls with the three minor children three times a week, Monday, Wednesday, and Saturdays, however, the children were to initiate the telephone calls at 6:30 p.m. As a further part of that April 30, 2013 Family Court order, the Plaintiff was permitted to travel with the three minor children to/from Bermuda during Friday, May, 2013 to Sunday, May 19, 2013 on such conditions as such travel not interfering with the mother's (defendant Gosine) supervised parenting time.

35. At no time during any supervised visit during April 2013 nor during any Family Court proceeding during April 2013, did defendant Gosine make any claim that the Plaintiff had in any way violated any prior order of protection; and, more particularly, defendant GOSINE made no claim that the Plaintiff had been in front on her home on Monday, April 8, 2013 between 7:05 p.m. and 7:10 p.m. Notably, in that April 30, 2013 Family Court order, Family Court made no finding that the Plaintiff had violated any prior order of protection or had in any manner interfered with the mother's visitation rights.

**AS AND FOR A FIRST CAUSE OF ACTION FOR UNLAWFUL SEIZURE and FALSE
ARREST (February 28, 2013)**

36. On or about February 28, 2013, defendant GOSINE, the CITY OF NEW YORK, and DeJESUS intended for the Plaintiff to be arrested, detained, seized, and confined.

37. On or about February 28, 2013, defendants GOSINE, the CITY OF NEW YORK, and DeJESUS each caused the arrest, detention, seizure, and confinement of the Plaintiff.

38. On or about February 28, 2013, the actions of defendants GOSINE, the CITY OF NEW YORK, and DeJESUS were each a substantial factor in causing the arrest, detention, seizure, and confinement of the Plaintiff.

39. At and before the time of Plaintiff's arrest, detention, seizure, and confinement on or about February 28, 2013, defendants GOSINE, the CITY OF NEW YORK, and DeJESUS each knew that there was no probable cause to justify arresting, detaining, seizing, or confining the Plaintiff.

40. At and before the time of plaintiff's arrest, detention, seizure, and confinement on or about February 28, 2013, defendants GOSINE, DeJESUS, and the CITY OF NEW YORK each knew that there was no probable cause to justify charging the plaintiff with any crime or offense.

41. Defendants GOSINE and DeJESUS acted jointly and in concert to cause the arrest, detention, seizure, and confinement of the plaintiff.

42. The arrest of the Plaintiff was made pursuant to a custom, policy and/or practice of the defendant CITY OF NEW YORK.

43. On or about February 28, 2013, the Plaintiff was arrested, detained, seized, and confined.

44. The arrest, detention, seizure, and confinement of the Plaintiff on or about February 28, 2013 was unlawful and was not based upon probable cause.

45. The Plaintiff was aware of his arrest, detention, seizure, and confinement.

46. The Plaintiff did not consent to his arrest, detention, seizure, and confinement.

47. The arrest, seizure, detention, and confinement of the Plaintiff was not made pursuant to a warrant.

48. The arrest, detention, seizure and confinement of the Plaintiff was not privileged.

49. At the time of Plaintiff's arrest, detention, seizure, and confinement, the Plaintiff was not a flight risk.

50. At the time of Plaintiff's arrest, detention, seizure, and confinement, defendants GOSINE, the CITY OF NEW YORK, and DeJESUS each knew that the Plaintiff was not a flight risk.

51. At the time of Plaintiff's arrest, detention, seizure, and confinement, defendants GOSINE, the CITY OF NEW YORK, and DeJESUS each knew that there was ample time to seek a warrant for the arrest.

52. At the time of Plaintiff's arrest, detention, seizure, and confinement, defendants GOSINE, the CITY OF NEW YORK, and DeJESUS each knew that there were no exigent circumstances to justify arresting, detaining, seizing, and confining the Plaintiff without the benefit of a warrant of arrest.

53. Because defendants GOSINE, DeJESUS, and the CITY OF NEW YORK did not want judicial review or oversight prior to engaging in their unlawful actions, the aforesaid defendants purposefully did not seek or request a warrant of arrest be issued for the arrest of the plaintiff.

54. As a result of the foregoing, plaintiff feared for his personal safety, was deprived of his liberty, subjected to scorn, ridicule, and embarrassment, suffered from shock and other damages, and he was prevented from performing his usual and customary duties and incurred legal fees and other expenses.

55. The acts of the defendants DeJESUS and the CITY OF NEW YORK violated the rights granted to plaintiff pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such, plaintiff seeks relief against each of those defendants pursuant to 42 U.S.C. §1983.

56. The acts of defendant GOSINE violated the common law of the State of New York.

57. That by reason of the foregoing the plaintiff has been damaged in a substantial sum which is to be determined by the Jury and the amount of such damages exceeds the jurisdictional limits of lower courts which would otherwise have jurisdiction over this action.

**AS AND FOR A SECOND CAUSE OF ACTION FOR UNLAWFUL SEIZURE and
MALICIOUS PROSECUTION (March 1, 2013)**

58. On Monday, January 13, 2014, a Notice of Claim was duly served and filed with the Comptroller of the City of New York; this cause of action was commenced within one year and ninety days of the accrual of the cause of action; and that at least thirty days have elapsed since the service of the Notice of Claim and an adjustment or payment thereof has been neglected or refused.

59. On or about March 1, 2013 defendants GOSINE, the CITY OF NEW YORK, and DeJESUS commenced and caused the commencement of a criminal prosecution of the Plaintiff in the Criminal Court of the City of New York.

60. The Plaintiff was prosecuted in the Criminal Court of the State of New York, Queens County, under docket number 2013QN011308.

61. There was no probable cause for the commencement of that criminal prosecution of the Plaintiff.

62. On and after March 1, 2013 defendants GOSINE, the CITY OF NEW YORK, and DeJESUS continued the criminal prosecution of the Plaintiff in the Criminal Court of the City of New York.

63. There was no probable cause for the continuation of that criminal prosecution of the Plaintiff.

64. The commencement and continuation of the prosecution of the Plaintiff was made pursuant to a custom, policy and/or practice of the defendant CITY OF NEW YORK.

65. Defendants GOSINE, DeJESUS, and the CITY OF NEW YORK commenced that criminal prosecution of the Plaintiff with malice.

66. Defendants GOSINE, DeJESUS, and the CITY OF NEW YORK continued that criminal prosecution of the Plaintiff with malice.

67. That criminal prosecution ended in failure on October 25, 2013.

68. On or about October 25, 2013, Hannah Collins, in her capacity as an employee of the defendant City of New York (within the Queens County District Attorney's office), moved to dismiss the criminal charges against the Plaintiff stating "the People could not meet our burden ... and found

the complaining witness's credibility to be questionable." The Criminal Court then dismissed the criminal charges against the Plaintiff and sealed the record.

69. As a result of the foregoing, Plaintiff feared for his personal safety, was deprived of his liberty, subjected to scorn, ridicule, and embarrassment, suffered from shock and other damages, and he was prevented from performing his usual and customary duties and incurred legal fees and other expenses.

70. The acts of the defendants DeJESUS and the CITY OF NEW YORK violated the rights granted to plaintiff pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such, plaintiff seeks relief against each of those defendants pursuant to 42 U.S.C. §1983.

71. The acts of defendants GOSINE, DeJESUS, and the CITY OF NEW YORK violated the common law of the State of New York.

72. That by reason of the foregoing the Plaintiff has been damaged in a substantial sum which is to be determined by the Jury and the amount of such damages exceeds the jurisdictional limits of lower courts which would otherwise have jurisdiction over this action.

**AS AND FOR A THIRD CAUSE OF ACTION FOR UNLAWFUL SEIZURE and FALSE
ARREST (May 9, 2013)**

73. On or about May 9, 2013, defendants GOSINE, the CITY OF NEW YORK, and FITZGERALD intended for the Plaintiff to be arrested, detained, seized, and confined.

74. On or about May 9, 2013, defendants GOSINE, the CITY OF NEW YORK, and FITZGERALD each caused the arrest, detention, seizure, and confinement of the Plaintiff.

75. On or about May 9, 2013, the actions of defendants GOSINE, the CITY OF NEW YORK, and FITZGERALD were each a substantial factor in causing the arrest, detention, seizure, and confinement of the Plaintiff.

76. At and before the time of Plaintiff's arrest, detention, seizure, and confinement on or about May 9, 2013, defendants GOSINE, the CITY OF NEW YORK, and FITZGERALD each knew that there was no probable cause to justify arresting, detaining, seizing, or confining the Plaintiff.

77. At and before the time of plaintiff's arrest, detention, seizure, and confinement on or about May 9, 2013, defendants GOSINE, the CITY OF NEW YORK, and FITZGERALD each knew that there was no probable cause to justify charging the plaintiff with any crime or offense.

78. Defendants GOSINE and FITZGERALD acted jointly and in concert to cause the arrest, detention, seizure, and confinement of the plaintiff.

79. The arrest of the Plaintiff was made pursuant to a custom, policy and/or practice of the defendant CITY OF NEW YORK.

80. On or about May 9, 2013, the Plaintiff was arrested, detained, seized, and confined.

81. The arrest, detention, seizure, and confinement of the Plaintiff on or about May 9, 2013 was unlawful and was not based upon probable cause.

82. The Plaintiff was aware of his arrest, detention, seizure, and confinement.

83. The Plaintiff did not consent to his arrest, detention, seizure, and confinement.

84. The arrest, seizure, detention, and confinement of the Plaintiff was not made pursuant to a warrant.

85. The arrest, detention, seizure and confinement of the Plaintiff was not privileged.

86. At the time of Plaintiff's arrest, detention, seizure, and confinement, the Plaintiff was not a flight risk.

87. At the time of Plaintiff's arrest, detention, seizure, and confinement, defendants GOSINE, the CITY OF NEW YORK, and FITZGERALD each knew that the Plaintiff was not a flight risk.

88. At the time of Plaintiff's arrest, detention, seizure, and confinement, defendants GOSINE, the CITY OF NEW YORK, and FITZGERALD each knew that there was ample time to seek a warrant for the arrest.

89. At the time of Plaintiff's arrest, detention, seizure, and confinement, defendants GOSINE, the CITY OF NEW YORK, and FITZGERALD each knew that there were no exigent circumstances to justify arresting, detaining, seizing, and confining the Plaintiff without the benefit of a warrant of arrest.

90. Because defendants GOSINE, the CITY OF NEW YORK, and FITZGERALD did not want judicial review or oversight prior to engaging in their unlawful actions, the aforesaid defendants purposefully did not seek or request a warrant of arrest be issued for the arrest of the plaintiff.

91. As a result of the foregoing, plaintiff feared for his personal safety, was deprived of his liberty, subjected to scorn, ridicule, and embarrassment, suffered from shock and other damages, and he was prevented from performing his usual and customary duties and incurred legal fees and other expenses.

92. The acts of the defendants FITZGERALD and the CITY OF NEW YORK violated the rights granted to plaintiff pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such, plaintiff seeks relief against each of those defendants pursuant to 42 U.S.C. §1983.

93. The acts of defendant GOSINE violated the common law of the State of New York.

94. That by reason of the foregoing the plaintiff has been damaged in a substantial sum which is to be determined by the Jury and the amount of such damages exceeds the jurisdictional limits of lower courts which would otherwise have jurisdiction over this action.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR UNLAWFUL SEIZURE and
MALICIOUS PROSECUTION (May 9, 2013)**

95. On Monday, January 13, 2014, a Notice of Claim was duly served and filed with the Comptroller of the City of New York; this cause of action was commenced within one year and ninety days of the accrual of the cause of action; and that at least thirty days have elapsed since the service of the Notice of Claim and an adjustment or payment thereof has been neglected or refused.

96. On or about May 9, 2013 defendants GOSINE, the CITY OF NEW YORK, and FITZGERALD commenced and caused the commencement of a criminal prosecution of the Plaintiff in the Criminal Court of the City of New York.

97. The Plaintiff was prosecuted in the Criminal Court of the State of New York, Queens County, under docket number 2013QN025618.

98. There was no probable cause for the commencement of that criminal prosecution of the Plaintiff.

99. On and after May 9, 2013, defendants GOSINE, the CITY OF NEW YORK, and FITZGERALD continued the criminal prosecution of the Plaintiff in the Criminal Court of the City of New York.

100. There was no probable cause for the continuation of that criminal prosecution of the Plaintiff.

101. The commencement and continuation of the prosecution of the Plaintiff was made pursuant to a custom, policy and/or practice of the defendant CITY OF NEW YORK.

102. Defendants GOSINE, the CITY OF NEW YORK, and FITZGERALD commenced that criminal prosecution of the Plaintiff with malice.

103. Defendants GOSINE, the CITY OF NEW YORK, and FITZGERALD continued that criminal prosecution of the Plaintiff with malice.

104. That criminal prosecution ended in failure on October 25, 2013.

105. On or about October 25, 2013, Hannah Collins, in her capacity as an employee of the defendant City of New York (within the Queens County District Attorney's office), moved to dismiss the criminal charges against the Plaintiff stating "the People could not meet our burden ... and found the complaining witness's credibility to be questionable." The Criminal Court then dismissed the criminal charges against the Plaintiff and sealed the record.

106. As a result of the foregoing, Plaintiff feared for his personal safety, was deprived of his liberty, subjected to scorn, ridicule, and embarrassment, suffered from shock and other damages, and he was prevented from performing his usual and customary duties and incurred legal fees and other expenses.

107. The acts of the defendants FITZGERALD and the CITY OF NEW YORK violated the rights granted to plaintiff pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such, plaintiff seeks relief against each of those defendants pursuant to 42 U.S.C. §1983.

108. The acts of defendants GOSINE, FITZGERALD, and the CITY OF NEW YORK violated the common law of the State of New York.

109. That by reason of the foregoing the Plaintiff has been damaged in a substantial sum which is to be determined by the Jury and the amount of such damages exceeds the jurisdictional limits of lower courts which would otherwise have jurisdiction over this action.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR UNLAWFUL SEIZURE and FALSE
ARREST (May 21, 2013)**

110. On or about May 21, 2013, defendants GOSINE, the CITY OF NEW YORK, and SPRAGUE intended for the Plaintiff to be arrested, detained, seized, and confined.

111. On or about May 21, 2013, defendants GOSINE, the CITY OF NEW YORK, and SPRAGUE each caused the arrest, detention, seizure, and confinement of the Plaintiff.

112. On or about May 21, 2013, the actions of defendants GOSINE, the CITY OF NEW YORK, and SPRAGUE were each a substantial factor in causing the arrest, detention, seizure, and confinement of the Plaintiff.

113. At and before the time of Plaintiff's arrest, detention, seizure, and confinement on or about May 21, 2013, defendants GOSINE, the CITY OF NEW YORK, and SPRAGUE each knew that there was no probable cause to justify arresting, detaining, seizing, or confining the Plaintiff.

114. At and before the time of plaintiff's arrest, detention, seizure, and confinement on or about May 21, 2013, defendants GOSINE, the CITY OF NEW YORK, and SPRAGUE each knew that there was no probable cause to justify charging the plaintiff with any crime or offense.

115. Defendants GOSINE and SPRAGUE acted jointly and in concert to cause the arrest, detention, seizure, and confinement of the plaintiff.

116. The arrest of the Plaintiff was made pursuant to a custom, policy and/or practice of the defendant CITY OF NEW YORK.

117. On or about May 21, 2013, the Plaintiff was arrested, detained, seized, and confined.

118. The arrest, detention, seizure, and confinement of the Plaintiff on or about May 21, 2013 was unlawful and was not based upon probable cause.

119. The Plaintiff was aware of his arrest, detention, seizure, and confinement.

120. The Plaintiff did not consent to his arrest, detention, seizure, and confinement.

121. The arrest, seizure, detention, and confinement of the Plaintiff was not made pursuant to a warrant.

122. The arrest, detention, seizure and confinement of the Plaintiff was not privileged.

123. At the time of Plaintiff's arrest, detention, seizure, and confinement, the Plaintiff was not a flight risk.

124. At the time of Plaintiff's arrest, detention, seizure, and confinement, defendants GOSINE, the CITY OF NEW YORK, and SPRAGUE each knew that the Plaintiff was not a flight risk.

125. At the time of Plaintiff's arrest, detention, seizure, and confinement, defendants GOSINE, the CITY OF NEW YORK, and SPRAGUE each knew that there was ample time to seek a warrant for the arrest.

126. At the time of Plaintiff's arrest, detention, seizure, and confinement, defendants GOSINE, the CITY OF NEW YORK, and SPRAGUE each knew that there were no exigent circumstances to justify arresting, detaining, seizing, and confining the Plaintiff without the benefit of a warrant of arrest.

127. Because defendants GOSINE, the CITY OF NEW YORK, and SPRAGUE did not want judicial review or oversight prior to engaging in their unlawful actions, the aforesaid defendants purposefully did not seek or request a warrant of arrest be issued for the arrest of the plaintiff.

128. As a result of the foregoing, plaintiff feared for his personal safety, was deprived of his liberty, subjected to scorn, ridicule, and embarrassment, suffered from shock and other damages, and he was prevented from performing his usual and customary duties and incurred legal fees and other expenses.

129. The acts of the defendants SPRAGUE and the CITY OF NEW YORK violated the rights granted to plaintiff pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such, plaintiff seeks relief against each of those defendants pursuant to 42 U.S.C. §1983.

130. The acts of defendant GOSINE violated the common law of the State of New York.

131. That by reason of the foregoing the plaintiff has been damaged in a substantial sum which is to be determined by the Jury and the amount of such damages exceeds the jurisdictional limits of lower courts which would otherwise have jurisdiction over this action.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR UNLAWFUL SEIZURE and
MALICIOUS PROSECUTION (May 21, 2013)**

132. On Monday, January 13, 2014, a Notice of Claim was duly served and filed with the Comptroller of the City of New York; this cause of action was commenced within one year and ninety days of the accrual of the cause of action; and that at least thirty days have elapsed since the service of the Notice of Claim and an adjustment or payment thereof has been neglected or refused.

133. On or about May 21, 2013 defendants GOSINE, the CITY OF NEW YORK, and SPRAGUE commenced and caused the commencement of a criminal prosecution of the Plaintiff in the Criminal Court of the City of New York.

134. The Plaintiff was prosecuted in the Criminal Court of the State of New York, Queens County, under docket number 2013QN028014.

135. There was no probable cause for the commencement of that criminal prosecution of the Plaintiff.

136. On and after May 21, 2013, defendants GOSINE, the CITY OF NEW YORK, and SPRAGUE continued the criminal prosecution of the Plaintiff in the Criminal Court of the City of New York.

137. There was no probable cause for the continuation of that criminal prosecution of the Plaintiff.

138. The commencement and continuation of the prosecution of the Plaintiff was made pursuant to a custom, policy and/or practice of the defendant CITY OF NEW YORK.

139. Defendants GOSINE, the CITY OF NEW YORK, and SPRAGUE commenced that criminal prosecution of the Plaintiff with malice.

140. Defendants GOSINE, the CITY OF NEW YORK, and SPRAGUE continued that criminal prosecution of the Plaintiff with malice.

141. That criminal prosecution ended in failure on October 25, 2013.

142. On or about October 25, 2013, Hannah Collins, in her capacity as an employee of the defendant City of New York (within the Queens County District Attorney's office), moved to dismiss the criminal charges against the Plaintiff stating "the People could not meet our burden ... and found the complaining witness's credibility to be questionable." The Criminal Court then dismissed the criminal charges against the Plaintiff and sealed the record.

143. As a result of the foregoing, Plaintiff feared for his personal safety, was deprived of his liberty, subjected to scorn, ridicule, and embarrassment, suffered from shock and other damages, and he was prevented from performing his usual and customary duties and incurred legal fees and other expenses.

144. The acts of the defendants SPRAGUE and the CITY OF NEW YORK violated the rights granted to plaintiff pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such, plaintiff seeks relief against each of those defendants pursuant to 42 U.S.C. §1983.

145. The acts of defendants GOSINE, SPRAGUE and the CITY OF NEW YORK violated the common law of the State of New York.

146. That by reason of the foregoing the Plaintiff has been damaged in a substantial sum which is to be determined by the Jury and the amount of such damages exceeds the jurisdictional limits of lower courts which would otherwise have jurisdiction over this action.

ARTICLE 16 IS INAPPLICABLE TO INSTANT ACTION

147. The provisions of Article 16 to the CPLR of the State of New York do not apply to the instant action.

148. The defendants acted with intent.

149. The defendants acted knowingly or intentionally, jointly, in concert, and in a conspiracy to "cover-up" the unlawful acts of the defendants and to otherwise deprive plaintiff of due process of law, to cause the acts or failures upon which liability is based.

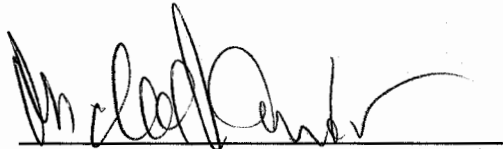
WHEREFORE, plaintiff demands judgment against the defendants as follows:

- (i) Compensatory damages in an amount that is just, reasonable, and fair and in an amount which exceeds the jurisdictional limits of any lower courts which would otherwise have jurisdiction over this action;
- (ii) Punitive damages, against the individual defendants, in an amount that is just, reasonable, and fair;
- (iii) Attorneys' fees and the costs of this action;

(iv) Such other relief as is fair, just, or equitable.

Dated: New York, NY
February 14, 2014

BY:

A handwritten signature in black ink, appearing to read "Michael J. Andrews", written over a horizontal line.

Michael J. Andrews
MICHAEL J. ANDREWS, P.C.
Attorneys For Plaintiff
OFFICE & P.O. ADDRESS
60 East 42nd Street, Suite 4700
New York, N.Y. 10165
(212) 557-7767

SMITH V. GOSINE ET AL.

VERIFICATION

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

MICHAEL J. ANDREWS, an attorney duly admitted to practice law in the Courts of the State of New York hereby affirms the following to be true under penalty of perjury: that I am the attorney for the plaintiff; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe it to be true.

This verification is made pursuant to C.P.L.R. §3020(d)(3).



MICHAEL J. ANDREWS